



Real Estate Regulatory Authority, Punjab

First Floor, Block-B, Plot No. 3, Sector-18 A, Madhya Marg, Chandigarh – 160018

Before the Bench of Sh. Rakesh Kumar Goyal, Chairman.

Phone No. 0172-5139800, email id: pschairrera@punjab.gov.in & pachairrera@punjab.gov.in

1. **Execution Application No.** :- 78 of 2024 in GC No. 0222/2021
2. **Name & Address of the Applicant/ Decree Holder/ Complainant** :- Sh. Neeraj Dimri S/o Sh. Purna Nand Dimri, R/o House No. 114, Ground Floor, C- Block, Mayfield Garden, Sector 50, Gurugram – 122018.
3. **Name & Address of the Judgment Debtor/ Respondent** :-
 1. M/s ATS Estates Pvt. Ltd., through Managing Director/ Director, 711/92, Deepali, Nehru Place, New Delhi-110019.
 2. State Bank of India, RACPC, SCO 99-107, 1st Floor, Sector-8C, Chandigarh-160009.
 (Respondent No.2 removed from array of respondent)
4. **Date of filing of Execution Application** :- 21.10.20252
5. **Name of Counsel(s) for the Applicant, if any.** :- Sh. Vipul Monga & Ms. Rabia Devgan, advocates
6. **Name of Counsel(s) for the respondent, if any.** :-
 1. Sh. J. P. Rana & Sh. Hardeep Singh Advocates for respondent No.1.
 2. Sh. Abhineet Taneja & Sh. Sumant Kumar Advocates for respondent No.2.
7. **Section and Rules under which order is passed** :- Section 40(1) of the RERD Act, 2016 r.w. Rule 24 and 25 of Punjab State RERD Rules, 2017 for execution of order dated 29.12.2023 passed in GC No. 0222 of 2021.
8. **Date of Order** :- 20.07.2026

ORDER U/S. 40(1) OF REAL ESTATE (REGULATION & DEVELOPMENT) ACT, 2016 READ WITH RULES 24 AND 25 OF PUNJAB STATE REAL ESTATE (REGULATION & DEVELOPMENT) RULES, 2017.

The present applicants seek the execution of the order u/s 31 of Real Estate (Regulation & Development) Act, 2016 [(hereinafter referred as The Act, 2016 subsequently in this order)] dated 29.12.2023 passed in Complaint No. GC 0222 of 2021 by the Chairperson, Real Estate Regulation Authority, Punjab (Referred as The Authority subsequently in this order) titled as Sh. Neeraj Dimri S/o Sh. Purna Nand Dimri R/o House No. 114, Ground Floor, C-Block, Mayfield Garden, Sector 50, Gurgaon, Haryana-122018 (The Applicant/Decree Holder/ Complainant- referred as Decree



Holder subsequently in this order) Vs. M/s ATS Estates Pvt. Ltd., 711/92, Deepali, Nehru Place, New Delhi (Judgment Debtor/ The Respondent referred as Judgment Debtor subsequently in this order). The directions in the said order reads as under:-

25. As a result of the above discussion, the complaint is accepted and the respondent no.1 is directed to refund the amount of Rs. 50,60,000/- deposited by the complainant with interest at the rate of 10.75% p.a. (today's SBI MCLR Rate 8.75% plus 2%) to be paid from the date of deposit till the date of actual refund. The payment should be made within the time stipulated under Rule 17 of the Punjab State Real Estate (Regulation and Development) Rules, 2017. However, it is made clear that the first charge on the refunded amount would be towards clearing the liability arising out of loan/ tripartite agreements executed between parties. The respondent no.1 is accordingly directed to clear the complainant's dues towards State Bank of India, RACPC, SDO 99-107, Sector 8, Chandigarh-160009 in the first instance, and then refund the balance amount to the complainant.

2. The Decree Holder is allottee of apartment bearing no.07011 measuring 1900 sq. ft. super area in the project namely "ATS Golf Meadows Lifestyle" being developed by the Judgment Debtor at Village Madhopur Tehsil Derabassi, District SAS Nagar Mohali. The total sale consideration for the flat was ₹.56,70,000/-. The due date for possession was 36 months with a grace period of 6 months from the date of actual start of the construction of particular tower. The complainant took a loan of ₹.36,00,000/- from the bank. The complainant sought the refunds for the various defaults by the respondent.

3. Thus, this Authority by way of an order u/s. 31 of The Act, 2016 dated 29.12.2023 in the case of Sh. Neeraj Dimri v. M/s ATS Estates Pvt. Ltd. held that the respondent is liable to refund the amount of ₹.50,60,000/- alongwith interest at the rate of 10.75% from the date of deposit till the date of actual refund within 90 days from the date of order. As the respondent did not comply with the said order, the complainant filed execution application



on 21.10.2024. Therefore, on the date of filing execution application, the respondent was absolute defaulter in terms of compliance with the said order passed u/s 31 of The RERD Act, 2016 dated 29.12.2023 passed in GC No. 0222 of 2021 to the extent of refund of amount paid and payment of interest payable u/s 18(1) of The RERD Act, 2016.

4. In consequence of filing of execution application, a notice was issued to appear and submit reply, to the Judgment Debtor i.e. M/s ATS Estates Pvt. Ltd. M/s State Bank of India filed its reply dated 10.02.2025 through their advocates. As per record of proceedings dated 26.08.2025, the complainant's counsel in the presence of respondent no.2 i.e. State Bank of India's counsel, informed this authority that entire outstanding to the bank has been cleared and therefore by way of record of proceedings dated 26.08.2025 (supra) ordered to remove the respondent no.2 from the array of respondent.

5. Regular proceedings have taken place from time to time. A few of the interim orders are being reproduced herein after. The interim order dated 30.09.2025 reads as under:-

When the matter was taken up, both the parties jointly requested for an adjournment, submitting that the respondent will be making part payment during the course of the day. However, it is pertinent to mention that this Bench was ready to pass the execution order, but upon the vehement request of both parties, the matter is kept pending to facilitate recovery. Both parties are directed to file their latest calculation of dues up to 31.10.2025 on next date of hearing.

6. The interim order dated 18.11.2025 reads as under:-

When the matter was taken up, some part payment has been made to the complainant by the respondent. Further Ld. Counsel for the respondent sought time to make the remaining payment to which Ld. Counsel for the complainant consented upon. Bench was ready to pass the execution application but both parties requested to keep it pending for the sake of recovery. However, both the parties vehemently requested to copy the matter alive as respondent is



making part payment. Upon the request by both parties, the matter is adjourned to 16.12.2025.

Both are directed to file their latest calculation upto 31.11.2025 on the next date of hearing. In case, the complainant does not file the copy of the latest calculation, the execution application may be dismissed on the next date for non-prosecution with liberty to file afresh with latest calculation.

7. The interim order dated 02.02.2026 reads as under:-

When the matter was taken up, Sh. Hardeep Saini, Ld. Counsel for the respondent sought an adjournment and stated that he will make the payment of ₹ 3 lakh to the complainants during the course of the day to which Ld. Counsel for the complainant consented upon. Bench was ready to pass the execution order but both parties requested to keep it pending for the sake of recovery. Both parties are directed to file their latest calculation upto 31.03.2026 on the next date of hearing.

To come up on 10.03.2026 for filing of reply and examining the other facts of the case.

Annexure 'A' has not been filed by any of the parties inspite of requests as per Record of Proceedings dated 11.02.2025, 07.04.2025 & 27.05.2025. Last opportunity is granted to file Annexure 'A' to all the parties. In case any party does not file Annexure 'A', the information contained in Annexure 'A' filed by the other party will be presumed true and correct for the purpose of calculation, if any to be made in the order u/s 31.

8. The interim order dated 10.03.2026 reads as under:-

When the matter was taken up, Ms. Rabia Devgan Ld. Attending the proceedings on behalf of the complaint. She didn't file the calculation sheet as directed vide record of proceedings dated 16.12.2025 & 02.02.2026. The calculation sheet has been filed by Ld. counsel for the respondent and has been handed over to the complainant. On repeated request, one more opportunity is hereby given to file its calculation otherwise, the case will be dismissed for non-prosecution and non-filing of essential papers by the complainant on the next date of hearing. The calculation sheet will be filed upto 25.03.2026 and copy should be sent in advance to the respondent as the respondent's copy had already been taken alongwith the soft copy a the email address mentioned in the complaint. A copy of the service of the said calculation by email shall also be marked through this Bench on the email which will be recorded in the proceedings at pachairrera@punjab.gov.in.



Now to come up on 06.04.2026 for further proceedings and examining the other facts of the case.

*Annexure 'A' has not been filed by any of the parties inspite of requests as per Record of Proceedings dated 11.02.2025, 07.04.2025 & 27.05.2025. **Last opportunity** is granted to file Annexure 'A' to all the parties. In case any party does not file Annexure 'A', the information contained in Annexure 'A' filed by the other party will be presumed true and correct for the purpose of calculation, if any to be made in the order u/s 31.*

9. The interim order dated 06.04.2026 reads as under:-

The latest calculation has been filed by the complainant and the copy has been given to the respondent. However, the respondent seeks time to go through it and check the accuracy. In the interest of justice, the matter is adjourned for the next date of hearing.

*Now to come up on 27.04.2026 for **Arguments**.*

10. The interim order dated 06.04.2026 reads as under:-

*No one attended by either of the parties. However, an adjournment request through email was received by the Ld. Counsel for the respondent. Perusal of the file reveals that the matter is pending since long and no further adjournment will be granted to any of the party. In To come up on **06.07.2026** for Arguments.*

It is apparent from the above that this Authority was ready to pass the order but the matter was kept pending on the request of both the parties.

11. The scanned copy of calculation of payments made towards the cost price of flat, amount sought as refund and interest on the refund filed by the decree holder is as under:-

The image shows three scanned tables. The first table on the left is a detailed calculation of payments made towards the cost price of a flat. The middle table shows the amount sought as a refund. The third table on the right shows the interest on the refund. Each table has multiple columns for different financial details and a final column for totals.

on instruction of client

Trust Counsel
Vijal Mangar (Advocate)
P/4-19/ 2-12



12. The scanned copy of calculation of payments received towards the cost price of flat, amount to be refunded and interest on the refund filed by the judgment debtor/ respondent/ promoter is as under:-

Statement of Payments Received by Judgment Debtor/Respondent/Promoter						
Sl. No.	Particulars	Amount	Date	Sl. No.	Particulars	
1	Initial Payment	10,00,000	01.01.2021	1	Initial Payment	10,00,000
2	Second Payment	5,00,000	01.07.2021	2	Second Payment	5,00,000
3	Third Payment	5,00,000	01.01.2022	3	Third Payment	5,00,000
4	Fourth Payment	5,00,000	01.07.2022	4	Fourth Payment	5,00,000
5	Fifth Payment	5,00,000	01.01.2023	5	Fifth Payment	5,00,000
6	Sixth Payment	5,00,000	01.07.2023	6	Sixth Payment	5,00,000
7	Seventh Payment	5,00,000	01.01.2024	7	Seventh Payment	5,00,000
8	Eighth Payment	5,00,000	01.07.2024	8	Eighth Payment	5,00,000
9	Ninth Payment	5,00,000	01.01.2025	9	Ninth Payment	5,00,000
10	Tenth Payment	5,00,000	01.07.2025	10	Tenth Payment	5,00,000
11	Eleventh Payment	5,00,000	01.01.2026	11	Eleventh Payment	5,00,000
12	Twelfth Payment	5,00,000	01.07.2026	12	Twelfth Payment	5,00,000
13	Thirteenth Payment	5,00,000	01.01.2027	13	Thirteenth Payment	5,00,000
14	Fourteenth Payment	5,00,000	01.07.2027	14	Fourteenth Payment	5,00,000
15	Fifteenth Payment	5,00,000	01.01.2028	15	Fifteenth Payment	5,00,000
16	Sixteenth Payment	5,00,000	01.07.2028	16	Sixteenth Payment	5,00,000
17	Seventeenth Payment	5,00,000	01.01.2029	17	Seventeenth Payment	5,00,000
18	Eighteenth Payment	5,00,000	01.07.2029	18	Eighteenth Payment	5,00,000
19	Nineteenth Payment	5,00,000	01.01.2030	19	Nineteenth Payment	5,00,000
20	Twentieth Payment	5,00,000	01.07.2030	20	Twentieth Payment	5,00,000
21	Twenty-first Payment	5,00,000	01.01.2031	21	Twenty-first Payment	5,00,000
22	Twenty-second Payment	5,00,000	01.07.2031	22	Twenty-second Payment	5,00,000
23	Twenty-third Payment	5,00,000	01.01.2032	23	Twenty-third Payment	5,00,000
24	Twenty-fourth Payment	5,00,000	01.07.2032	24	Twenty-fourth Payment	5,00,000
25	Twenty-fifth Payment	5,00,000	01.01.2033	25	Twenty-fifth Payment	5,00,000
26	Twenty-sixth Payment	5,00,000	01.07.2033	26	Twenty-sixth Payment	5,00,000
27	Twenty-seventh Payment	5,00,000	01.01.2034	27	Twenty-seventh Payment	5,00,000
28	Twenty-eighth Payment	5,00,000	01.07.2034	28	Twenty-eighth Payment	5,00,000
29	Twenty-ninth Payment	5,00,000	01.01.2035	29	Twenty-ninth Payment	5,00,000
30	Thirtieth Payment	5,00,000	01.07.2035	30	Thirtieth Payment	5,00,000
31	Thirty-first Payment	5,00,000	01.01.2036	31	Thirty-first Payment	5,00,000
32	Thirty-second Payment	5,00,000	01.07.2036	32	Thirty-second Payment	5,00,000
33	Thirty-third Payment	5,00,000	01.01.2037	33	Thirty-third Payment	5,00,000
34	Thirty-fourth Payment	5,00,000	01.07.2037	34	Thirty-fourth Payment	5,00,000
35	Thirty-fifth Payment	5,00,000	01.01.2038	35	Thirty-fifth Payment	5,00,000
36	Thirty-sixth Payment	5,00,000	01.07.2038	36	Thirty-sixth Payment	5,00,000
37	Thirty-seventh Payment	5,00,000	01.01.2039	37	Thirty-seventh Payment	5,00,000
38	Thirty-eighth Payment	5,00,000	01.07.2039	38	Thirty-eighth Payment	5,00,000
39	Thirty-ninth Payment	5,00,000	01.01.2040	39	Thirty-ninth Payment	5,00,000
40	Fortieth Payment	5,00,000	01.07.2040	40	Fortieth Payment	5,00,000
41	Forty-first Payment	5,00,000	01.01.2041	41	Forty-first Payment	5,00,000
42	Forty-second Payment	5,00,000	01.07.2041	42	Forty-second Payment	5,00,000
43	Forty-third Payment	5,00,000	01.01.2042	43	Forty-third Payment	5,00,000
44	Forty-fourth Payment	5,00,000	01.07.2042	44	Forty-fourth Payment	5,00,000
45	Forty-fifth Payment	5,00,000	01.01.2043	45	Forty-fifth Payment	5,00,000
46	Forty-sixth Payment	5,00,000	01.07.2043	46	Forty-sixth Payment	5,00,000
47	Forty-seventh Payment	5,00,000	01.01.2044	47	Forty-seventh Payment	5,00,000
48	Forty-eighth Payment	5,00,000	01.07.2044	48	Forty-eighth Payment	5,00,000
49	Forty-ninth Payment	5,00,000	01.01.2045	49	Forty-ninth Payment	5,00,000
50	Fiftieth Payment	5,00,000	01.07.2045	50	Fiftieth Payment	5,00,000
51	Fifty-first Payment	5,00,000	01.01.2046	51	Fifty-first Payment	5,00,000
52	Fifty-second Payment	5,00,000	01.07.2046	52	Fifty-second Payment	5,00,000
53	Fifty-third Payment	5,00,000	01.01.2047	53	Fifty-third Payment	5,00,000
54	Fifty-fourth Payment	5,00,000	01.07.2047	54	Fifty-fourth Payment	5,00,000
55	Fifty-fifth Payment	5,00,000	01.01.2048	55	Fifty-fifth Payment	5,00,000
56	Fifty-sixth Payment	5,00,000	01.07.2048	56	Fifty-sixth Payment	5,00,000
57	Fifty-seventh Payment	5,00,000	01.01.2049	57	Fifty-seventh Payment	5,00,000
58	Fifty-eighth Payment	5,00,000	01.07.2049	58	Fifty-eighth Payment	5,00,000
59	Fifty-ninth Payment	5,00,000	01.01.2050	59	Fifty-ninth Payment	5,00,000
60	Sixtieth Payment	5,00,000	01.07.2050	60	Sixtieth Payment	5,00,000
61	Sixty-first Payment	5,00,000	01.01.2051	61	Sixty-first Payment	5,00,000
62	Sixty-second Payment	5,00,000	01.07.2051	62	Sixty-second Payment	5,00,000
63	Sixty-third Payment	5,00,000	01.01.2052	63	Sixty-third Payment	5,00,000
64	Sixty-fourth Payment	5,00,000	01.07.2052	64	Sixty-fourth Payment	5,00,000
65	Sixty-fifth Payment	5,00,000	01.01.2053	65	Sixty-fifth Payment	5,00,000
66	Sixty-sixth Payment	5,00,000	01.07.2053	66	Sixty-sixth Payment	5,00,000
67	Sixty-seventh Payment	5,00,000	01.01.2054	67	Sixty-seventh Payment	5,00,000
68	Sixty-eighth Payment	5,00,000	01.07.2054	68	Sixty-eighth Payment	5,00,000
69	Sixty-ninth Payment	5,00,000	01.01.2055	69	Sixty-ninth Payment	5,00,000
70	Seventieth Payment	5,00,000	01.07.2055	70	Seventieth Payment	5,00,000
71	Seventy-first Payment	5,00,000	01.01.2056	71	Seventy-first Payment	5,00,000
72	Seventy-second Payment	5,00,000	01.07.2056	72	Seventy-second Payment	5,00,000
73	Seventy-third Payment	5,00,000	01.01.2057	73	Seventy-third Payment	5,00,000
74	Seventy-fourth Payment	5,00,000	01.07.2057	74	Seventy-fourth Payment	5,00,000
75	Seventy-fifth Payment	5,00,000	01.01.2058	75	Seventy-fifth Payment	5,00,000
76	Seventy-sixth Payment	5,00,000	01.07.2058	76	Seventy-sixth Payment	5,00,000
77	Seventy-seventh Payment	5,00,000	01.01.2059	77	Seventy-seventh Payment	5,00,000
78	Seventy-eighth Payment	5,00,000	01.07.2059	78	Seventy-eighth Payment	5,00,000
79	Seventy-ninth Payment	5,00,000	01.01.2060	79	Seventy-ninth Payment	5,00,000
80	Eightieth Payment	5,00,000	01.07.2060	80	Eightieth Payment	5,00,000
81	Eighty-first Payment	5,00,000	01.01.2061	81	Eighty-first Payment	5,00,000
82	Eighty-second Payment	5,00,000	01.07.2061	82	Eighty-second Payment	5,00,000
83	Eighty-third Payment	5,00,000	01.01.2062	83	Eighty-third Payment	5,00,000
84	Eighty-fourth Payment	5,00,000	01.07.2062	84	Eighty-fourth Payment	5,00,000
85	Eighty-fifth Payment	5,00,000	01.01.2063	85	Eighty-fifth Payment	5,00,000
86	Eighty-sixth Payment	5,00,000	01.07.2063	86	Eighty-sixth Payment	5,00,000
87	Eighty-seventh Payment	5,00,000	01.01.2064	87	Eighty-seventh Payment	5,00,000
88	Eighty-eighth Payment	5,00,000	01.07.2064	88	Eighty-eighth Payment	5,00,000
89	Eighty-ninth Payment	5,00,000	01.01.2065	89	Eighty-ninth Payment	5,00,000
90	Ninetieth Payment	5,00,000	01.07.2065	90	Ninetieth Payment	5,00,000
91	One hundredth Payment	5,00,000	01.01.2066	91	One hundredth Payment	5,00,000
92	One hundred and first Payment	5,00,000	01.07.2066	92	One hundred and first Payment	5,00,000
93	One hundred and second Payment	5,00,000	01.01.2067	93	One hundred and second Payment	5,00,000
94	One hundred and third Payment	5,00,000	01.07.2067	94	One hundred and third Payment	5,00,000
95	One hundred and fourth Payment	5,00,000	01.01.2068	95	One hundred and fourth Payment	5,00,000
96	One hundred and fifth Payment	5,00,000	01.07.2068	96	One hundred and fifth Payment	5,00,000
97	One hundred and sixth Payment	5,00,000	01.01.2069	97	One hundred and sixth Payment	5,00,000
98	One hundred and seventh Payment	5,00,000	01.07.2069	98	One hundred and seventh Payment	5,00,000
99	One hundred and eighth Payment	5,00,000	01.01.2070	99	One hundred and eighth Payment	5,00,000
100	One hundred and ninth Payment	5,00,000	01.07.2070	100	One hundred and ninth Payment	5,00,000
101	One hundred and tenth Payment	5,00,000	01.01.2071	101	One hundred and tenth Payment	5,00,000
102	One hundred and eleventh Payment	5,00,000	01.07.2071	102	One hundred and eleventh Payment	5,00,000
103	One hundred and twelfth Payment	5,00,000	01.01.2072	103	One hundred and twelfth Payment	5,00,000
104	One hundred and thirteenth Payment	5,00,000	01.07.2072	104	One hundred and thirteenth Payment	5,00,000
105	One hundred and fourteenth Payment	5,00,000	01.01.2073	105	One hundred and fourteenth Payment	5,00,000
106	One hundred and fifteenth Payment	5,00,000	01.07.2073	106	One hundred and fifteenth Payment	5,00,000
107	One hundred and sixteenth Payment	5,00,000	01.01.2074	107	One hundred and sixteenth Payment	5,00,000
108	One hundred and seventeenth Payment	5,00,000	01.07.2074	108	One hundred and seventeenth Payment	5,00,000
109	One hundred and eighteenth Payment	5,00,000	01.01.2075	109	One hundred and eighteenth Payment	5,00,000
110	One hundred and nineteenth Payment	5,00,000	01.07.2075	110	One hundred and nineteenth Payment	5,00,000
111	One hundred and twentieth Payment	5,00,000	01.01.2076	111	One hundred and twentieth Payment	5,00,000
112	One hundred and twenty-first Payment	5,00,000	01.07.2076	112	One hundred and twenty-first Payment	5,00,000
113	One hundred and twenty-second Payment	5,00,000	01.01.2077	113	One hundred and twenty-second Payment	5,00,000
114	One hundred and twenty-third Payment	5,00,000	01.07.2077	114	One hundred and twenty-third Payment	5,00,000
115	One hundred and twenty-fourth Payment	5,00,000	01.01.2078	115	One hundred and twenty-fourth Payment	5,00,000
116	One hundred and twenty-fifth Payment	5,00,000	01.07.2078	116	One hundred and twenty-fifth Payment	5,00,000
117	One hundred and twenty-sixth Payment	5,00,000	01.01.2079	117	One hundred and twenty-sixth Payment	5,00,000
118	One hundred and twenty-seventh Payment	5,00,000	01.07.2079	118	One hundred and twenty-seventh Payment	5,00,000
119	One hundred and twenty-eighth Payment	5,00,000	01.01.2080	119	One hundred and twenty-eighth Payment	5,00,000
120	One hundred and twenty-ninth Payment	5,00,000	01.07.2080	120	One hundred and twenty-ninth Payment	5,00,000
121	One hundred and thirtieth Payment	5,00,000	01.01.2081	121	One hundred and thirtieth Payment	5,00,000
122	One hundred and thirty-first Payment	5,00,000	01.07.2081	122	One hundred and thirty-first Payment	5,00,000
123	One hundred and thirty-second Payment	5,00,000	01.01.2082	123	One hundred and thirty-second Payment	5,00,000
124	One hundred and thirty-third Payment	5,00,000	01.07.2082	124	One hundred and thirty-third Payment	5,00,000
125	One hundred and thirty-fourth Payment	5,00,000	01.01.2083	125	One hundred and thirty-fourth Payment	5,00,000
126	One hundred and thirty-fifth Payment	5,00,000	01.07.2083	126	One hundred and thirty-fifth Payment	5,00,000
127	One hundred and thirty-sixth Payment	5,00,000	01.01.2084	127	One hundred and thirty-sixth Payment	5,00,000
128	One hundred and thirty-seventh Payment	5,00,000	01.07.2084	128	One hundred and thirty-seventh Payment	5,00,000
129	One hundred and thirty-eighth Payment	5,00,000	01.01.2085	129	One hundred and thirty-eighth Payment	5,00,000
130	One hundred and thirty-ninth Payment	5,00,000	01.07.2085	130	One hundred and thirty-ninth Payment	5,00,000
131	One hundred and fortieth Payment	5,00,000	01.01.2086	131	One hundred and fortieth Payment	5,00,000
132	One hundred and forty-first Payment	5,00,000	01.07.2086	132	One hundred and forty-first Payment	5,00,000
133	One hundred and forty-second Payment	5,00,000	01.01.2087	133	One hundred and forty-second Payment	5,00,000
134	One hundred and forty-third Payment	5,00,000	01.07.2087	134	One hundred and forty-third Payment	5,00,000
135	One hundred and forty-fourth Payment	5,00,000	01.01.2088	135	One hundred and forty-fourth Payment	5,00,000
136	One hundred and forty-fifth Payment	5,00,000	01.07.2088	136	One hundred and forty-fifth Payment	5,00,000
137	One hundred and forty-sixth Payment	5,00,000	01.01.2089	137	One hundred and forty-sixth Payment	5,00,000
138	One hundred and forty-seventh Payment	5,00,000	01.07.2089	138	One hundred and forty-seventh Payment	5,00,000
139	One hundred and forty-eighth Payment	5,00,000	01.01.2090	139	One hundred and forty-eighth Payment	5,00,000
140	One hundred and forty-ninth Payment	5,00,000	01.07.2090	140	One hundred and forty-ninth Payment	5,00,000
141	One hundred and fiftieth Payment	5,00,000	01.01.2091	141	One hundred and fiftieth Payment	5,00,000
142	One hundred and fifty-first Payment	5,00,000	01.07.2091	142	One hundred and fifty-first Payment	5,00,000
143	One hundred and fifty-second Payment	5,00,000	01.01.2092	143	One hundred and fifty-second Payment	5,00,000
144	One hundred and fifty-third Payment	5,00,000	01.07.2092	144	One hundred and fifty-third Payment	5,00,000
145	One hundred and fifty-fourth Payment	5,00,000	01.01.2093	145	One hundred and fifty-fourth Payment	5,00,000
146	One hundred and fifty-fifth Payment	5,00,000	01.07.2093	146	One hundred and fifty-fifth Payment	5,00,000
147	One hundred and fifty-sixth Payment	5,00,000	01.01.2094	147	One hundred and fifty-sixth Payment	5,00,000
148	One hundred and fifty-seventh Payment	5,00,000	01.07.2094	148	One hundred and fifty-seventh Payment	5,00,000
149	One hundred and fifty-eighth					

Interest payable from	Interest Calculated till	Principal Amount	Refund Amount	Interest Rate as per judgment	Tenure (Months)	Interest Amount
01.02.2013	28.02.2013	11,00,000		10.75%	1	9,854
01.03.2013	31.07.2013	47,00,000		10.75%	5	2,10,521
01.08.2013	30.09.2013	49,50,000		10.75%	2	88,688
01.10.2013	28.02.2025	50,60,000		10.75%	137	62,10,096
Total Principal Amount		50,60,000	Total Interest Upto 28.02.2025			65,19,159
01.03.2025	31.07.2026	50,60,000		10.75%	17	7,70,596
						72,89,755
			Amount Refunded till 07.04.2026			44,00,000
Total Principal Amount		50,60,000	Balance Interest Payable			28,89,755

15.1 The judgment debtor/ respondent till the date of passing of this order has made payments of ₹.44,00,000/- from 5th February, 2025 to 07th April, 2026. Therefore, this payment is not even sufficient to discharge the interest payable on the principal amount. Hence, all the payments made till 07th April, 2026 will be adjusted against the interest payable u/s 18 of RERD Act, 2016.

16. Therefore, an amount of ₹.50,60,000/- as principal amount plus accrued interest of ₹.28,89,755/- (Balance Interest Amount Payable) upto 31.07.2026 has become payable or due to the judgment debtor/ respondent. The payment made shall be first adjusted against the interest payable on the said date and the balance, if any shall be adjusted against the principal amount. The respondent shall remain liable to pay further monthly delay interest at the rate of ₹45,329/- per month from 01.08.2026 onwards, which shall continue to accrue until the date, a full and complete payment is made by the judgment debtor/ respondent or until such time as full compliance with the order is achieved. The amount of ₹.79,49,755/- [50,60,000 + 28,89,755] is due and payable and the same is being held as land revenue for the purposes of collection to be collected under the provisions of the Punjab Land Revenue Act, 1887. The respondent is further directed to pay the above said sums at the earliest and further a sum of ₹45,329/- per month from 01.08.2026 onwards till full and complete amount is refunded to the decree holder/ complainant.



17. The total amount due up-to the end of month of date of judgment in this case i.e. 31.07.2026 amounts to ₹.79,49,755/- [50,60,000 + 28,89,755] and the respondent/judgment debtor is directed to make the payments immediately. No further time is granted since the order u/s. 31 of the RERD Act, 2016 was passed on 29.12.2023 and the respondent/judgment debtor were legally bound to make the said payment within 90 days of the order.

18. Any amount paid by the respondent/judgment debtor shall be first deducted towards the interest payable by the respondent/judgment debtor and if amount paid is in excess of the interest payable then the balance amount (amount paid – interest payable) will be deducted from the amount of principal amount.

19. Further, the respondents/judgment debtors will liable for interest of ₹45,329/- per month for the delayed period after 31.07.2026. The respondent/judgment debtor M/s ATS Estates Pvt. Ltd. is therefore held liable for an amount of ₹.79,49,755/- [50,60,000 + 28,89,755]. The respondents/judgment debtors are further directed to pay the above amount at the earliest. In the result, the execution application is allowed. The amount of principal plus interest ₹.79,49,755/- [50,60,000 + 28,89,755] and further a sum of ₹45,329/- per month from 01.08.2026 as provided u/s. 40 (1) of the Real Estate (Regulation and Development) Act, 2016 will be calculated as "Land Revenue" by the Competent Authority under the provisions of "Land Revenue Act, 1887". The Secretary of this Authority will issue a recovery certificate accordingly.

20. Further, any amount paid by the respondent/judgment debtor shall be considered as payment against the interest whatever is due and will be set off against principal only after payment of whole of interest. The payment by respondent/judgment debtor will be considered only after whole of interest due till date has been paid. Even subsequent payment, if any will be first considered towards interest payment, if any becomes due on the unpaid principle amount. It is clarified that interest @ ₹45,329/- per month will keep on generating till the whole payment is paid as per detailed above.



21. However, at the cost of repetition it is ordered in addition to the above direction and discussion in various paras, the following directions are ordered specifically for necessary compliance:-

- a. The Authority has allowed the execution application.
- b. It has been directed that the respondent-cum-judgment debtor-cum-promoter is liable to pay an amount of ₹.79,49,755/- [50,60,000 + 28,89,755] and further a sum of ₹45,329/- per month from 01.08.2026, after adjusting the payment of interest of ₹.44,00,000/- already paid. The payment of ₹.44,00,000/- has been adjusted towards interest as an amount of ₹.65,19,591/- as interest was already due before the start of payment by the promoter to the complainant w.e.f. 20.06.2025.
- c. The Authority has further directed that additional delay interest at the rate of ₹45,329/- per month shall be payable from 01.08.2026 onwards till a full and complete principal and interest amount is paid.
- d. It has been further directed that the accrued interest amount shall be adjusted first against any payment received on the said date, and in case the payment amount exceeds such accrued interest on the said date, the balance shall be adjusted against the principal amount payable by the respondent-cum-judgment debtor-cum-promoter to the applicant-cum-complainant-cum-allottee.
- e. The Authority has held that the determined amount of ₹.79,49,755/- [50,60,000 + 28,89,755] along with future monthly interest of ₹45,329/- per month from 01.08.2026 shall be treated as arrears of land revenue under Section 40(1) of the RERD Act, 2016 and shall be recoverable through the competent revenue authorities in accordance with the Punjab Land Revenue Act, 1887.
- f. The respondent-cum-judgment debtor-cum-promoter is directed to comply with the order proactively by making payment and both parties have been directed to inform the Authority regarding any payments or adjustments made so that the same may be duly accounted for before initiation of recovery proceedings.



22. **Sh. Neeraj Dimri S/o Sh. Purna Nand Dimri is hereby held as decree holder and M/s ATS Estates Pvt. Ltd. is hereby held as judgment debtor.** The principal plus total balance interest amount payable up-to the previous month to date of possession i.e. 31.07.2026 amounts to **₹.79,49,755/- [50,60,000/- + 28,89,755/-]** and **₹.45,329/-** per month for the delayed period after 31.07.2026. The respondent/JD is directed to make the payments immediately. No further time is granted since the order u/s. 31 of the RERD Act, 2016 was passed on 29.12.2023 & the respondent/JD was legally bound to make the said payment within ninety days of the said order.

23. The principal plus total balance interest amount payable up-to the previous month to date of possession i.e. 31.07.2026 amounting to **₹.79,49,755/- [50,60,000/- + 28,89,755/-]** and **₹.45,329/-** per month for the delayed period after 31.07.2026 as provided u/s. 40 (1) of the Real Estate (Regulation and Development) Act, 2016 is hereby held as "Land Revenue" by the Competent Authority under the provisions of "Land Revenue Act, 1887". The Secretary of this Authority will issue a recovery certificate accordingly. It is held that **₹.79,49,755/- [50,60,000/- + 28,89,755/-]** and **₹.45,329/-** per month for the delayed period after 31.07.2026 is payable as per "Agreement for Sale" entered between the applicant-cum-complainant-cum allottee & the respondent-cum-promoter and/was payable simultaneously as and when any demand was raised by the respondent-cum-promoter-cum-judgment Debtor. The Judgment Debtor/ Respondent/ Promoter is under liabilities to make the payment now immediately. The determination of this amount as "Land Revenue" is an alternative means of coercive collection due to failure of the judgment debtor/ promoter/respondent to make the payment when it was due.

24. The Secretary of the Real Estate Regulatory Authority, Punjab is hereby directed to issue the recovery certificate immediately. The promoters (judgment debtors) and the complainant (decree holder) are directed to inform the Secretary of this Authority for any payment effected in compliance with the recovery certificate or call it back after it is fully satisfied and update the data of this Authority with the said transaction of payment.



The present execution application is allowed.

Chandigarh
Dated: 20.07.2026




(Rakesh Kumar Goyal)
Chairman,
RERA, Punjab.

F. No. Endst. No./CP/RERA/PB/PA/Sec.40/910

Date: 21.07.2026

A copy of the above order is being sent to the followings for information as well as for their further necessary action:-

1. Sh. Neeraj Dimri S/o Sh. Purna Nand Dimri, R/o House No. 114, Ground Floor, C- Block, Mayfield Garden, Sector 50, Gurugram – 122018.
2. M/s ATS Estates Pvt. Ltd., through Director, 711/92, Deepali, Nehru Place, New Delhi-110019.
3. The Secretary, RERA, Punjab.
4. The Director (Legal).
- ✓ 5. The Complaint File.
6. The Master File.


(Sawan Kumar)
P.A. to Chairman,
RERA, Punjab